

Opinion of the Court

cause, the panel majority assumed that the officers could not disbelieve the partygoers' story.

The rule applied by the panel majority was not clearly established because it was not "settled law." *Hunter*, 502 U. S., at 228. The panel majority relied on a single decision, *Smith v. United States*, 281 A. 2d 438 (D. C. 1971).⁸ The defendant in *Smith*, who was found trespassing in a locked construction site near midnight, asserted that he was entitled to a jury instruction explaining that a bona fide belief of a right to enter is a complete defense to unlawful entry. *Id.*, at 439–440. The D. C. Court of Appeals affirmed the trial court's refusal to give the instruction because the defendant had not established a "reasonable basis" for his alleged bona fide belief. *Ibid.* *Smith* does not say anything about whether the officers here could infer from all the evidence that the partygoers knew that they were trespassing.

Nor would it have been clear to every reasonable officer that, in these circumstances, the partygoers' bona fide belief that they were invited to the house was "uncontroverted." The officers knew that the partygoers had entered the home against the will of the owner. And District case law suggested that officers can infer a suspect's guilty state of mind based solely on his conduct.⁹ In *Tillman v. Washington*

⁸We have not yet decided what precedents—other than our own—qualify as controlling authority for purposes of qualified immunity. See, e. g., *Reichle v. Howards*, 566 U. S. 658, 665–666 (2012) (reserving the question whether court of appeals decisions can be "a dispositive source of clearly established law"). We express no view on that question here. Relatedly, our citation to and discussion of various lower court precedents should not be construed as agreeing or disagreeing with them, or endorsing a particular reading of them. See *City and County of San Francisco v. Sheehan*, 575 U. S. 600, 615, n. 4 (2015). Instead, we address only how a reasonable official "could have interpreted" them. *Reichle*, *supra*, at 667.

⁹The officers cited many of these authorities in their opening brief to the Court of Appeals. See Brief for Appellants in No. 12–7127 (CADDC), pp. 28–29. Yet the panel majority failed to mention any of them in its analysis of qualified immunity.